



File No.: EXP202202064

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 7, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA (hereinafter referred to as the claimed party). After notifying the initiation agreement and analyzing the allegations presented, on January 30, 2024, the proposal for resolution was issued, which is transcribed below:

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File No.: EXP202202064

IMI Reference: A61VMN 369363- A60DD 513793

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the claiming party) filed a complaint on July 27, 2021, with the Data Protection Commission (hereinafter, DPC), the data protection authority of Ireland. The complaint is directed against IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA with NIF A85850394 (hereinafter, IBERIA). The reasons for the complaint are as follows:

The claiming party, along with her husband, was to take a flight from Quito (Ecuador) to Dublin (Ireland) with a stopover in Madrid on May 31, 2021. At that time, due to COVID-19 restrictions, tourism travel was not permitted, and to justify that the trip was for family reasons, they were directed to the IBERIA offices at the Quito airport, where they were asked for a copy of their identity document, their husband's identity document, and their marriage certificate to send it to the police at Madrid airport to decide whether that documentation was valid for the trip. Ultimately, they were allowed to make the trip, but they were left wondering whether the police at Madrid airport had been contacted or how their data had been used. Since then, the claiming party indicates that she has requested information from IBERIA, without receiving a response, regarding why and how her data was used on 5 occasions (the last on July 4, 2021) through emails sent to the data protection officer (hereinafter, DPD) of IBERIA (OficinaDPO@iberia.es) and to that of its parent company (iag.data.protection@iagroup.com).

Along with the complaint, the following is provided:

- Email dated June 2, 2021, sent by ***EMAIL.2 to ***EMAIL.1 (hereinafter, the claiming party's email) with the following header:

And the following content:

"Dear A.A.A.,

Thank you for your notification regarding flight ***VUELO.1 of ***FECHA.1.

As Iberia employees, we strive at all times to help customers and offer solutions for all eventualities. However, it is clear from your comments that on this occasion there was a lack of professionalism on our part. We would ask you to treat this as an exceptional occurrence, and please be assured that we have referred the incident to the person concerned so that they may take the necessary measures to avoid this type of behaviour in the future.

Regarding the payment for your extra bag, we want to inform you that baggage allowances are based on the fare paid for tickets, the cabin class in which the passenger is travelling and the degree of customer loyalty.

Before buying a ticket, you should check the baggage allowance included. This will also be stated on the receipt we provide. Once a ticket has been purchased, we offer passengers the option of adding more items of baggage, either through the vouchers available on our website www.iberia.com or through payment of the excess directly at the airport.

In this particular case, we have checked that the allowance allocated to you was correct and the

process followed was therefore correct as well.

We apologise for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Customer Relations”

[Unofficial translation:

“Estimado A.A.A.,

Gracias por su notificación sobre el vuelo ***VUELO.1 del ***FECHA.1.

Como empleados de Iberia, nos esforzamos en todo momento para ayudar a los clientes y ofrecer soluciones para todas las eventualidades.

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However, from your comments, it is clear that on this occasion there was a lack of professionalism on our part. We ask that you treat this as an exceptional fact, and rest assured that we have referred the incident to the interested party so that they can take the necessary measures to prevent this type of behavior in the future.

Regarding the payment for your extra baggage, we would like to inform you that baggage allowances are based on the fare paid for the tickets, the cabin class in which the passenger is traveling, and the degree of customer loyalty.

Before purchasing a ticket, you should check the included baggage allowance. This will also be indicated on the receipt we provide. Once a ticket is purchased, we offer passengers the option to add more baggage items, either through the vouchers available on our website www.iberia.com or by paying for excess baggage directly at the airport.

In this particular case, we have verified that the allowance assigned to you was correct and, therefore, the process followed was also correct.

We apologize for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Best regards,

Customer Relations

- Email dated June 3, 2021, sent from ***EMAIL.1 to ***EMAIL.2, in response to the previous one, stating the following:

“Hi there,

Thank you for your reply.

(...)

As mentioned in my first communication, I would like to understand what the communication was between Iberia and The Madrid Airport Police. After we were turned away from check-in and directed to the Iberia office to prove our marriage, the Iberia Quito team took our passports and marriage certificate to share with Madrid Airport police to see if they would let us fly back to Ireland. I want to know how our data was used, that this communication actually happened and what the output of this communication was. Can you please follow up internally to get this information and feed this back to us.

Best Regards,

A.A.A.

***TELEFONO.1”

[Unofficial translation:

“Hello,

Thank you for your response.

(...)

As I mentioned in my first communication, I would like to understand what the communication was

between Iberia and the Madrid Airport Police. After we were turned away at check-in and directed to the Iberia office to prove our marriage, the Iberia Quito team took our passports and marriage certificate to share with the Madrid airport police to see if they would let us fly back to Ireland. I want to know how our data was used, that this communication actually happened and what the result of this communication was. Please follow up internally to obtain this information and inform us.

Best regards,

A.A.A.

***TELEFONO.1"]

- Email dated June 7, 2021, sent from ***EMAIL.2 to the claimant's email with the following subject:

And the following content:

"Dear A.A.A.,

Thank you for contacting us about the charge for your baggage on flight ***VUELO.1 on ***FECHA.1, from Quito to Madrid.

We appreciate that you were inconvenienced by this. Airlines are entitled to establish their own policies regarding baggage allowances based on the fare paid for tickets, the cabin class in which the passenger is traveling, and the degree of customer loyalty.

In this particular case, we have checked that the allowance allocated to you was correct and the process followed was therefore correct as well. Even though your bag was cabin size, if it weighs more than 10 Kgs, it will be treated and charged as a bag on hold.

We apologize for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Customer Relations"

[Unofficial translation:

Dear A.A.A.,

Thank you for contacting us about the charge for your baggage on flight ***VUELO.1 on ***FECHA.1, from Quito to Madrid.

We understand that this has caused you inconvenience. Airlines have the right to establish their own policies regarding baggage allowances based on the fare paid for tickets, the cabin class in which the passenger is traveling, and the degree of customer loyalty.

In this particular case, we have verified that the allowance assigned to you was correct and, therefore, the process followed was also correct. Although your bag was cabin size, if it weighs more than 10 Kgs, it will be treated and charged as a bag on hold.

We apologize for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Best regards,

Customer Relations"]

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- Email dated June 18, 2021 sent from ***EMAIL.2 to the claimant's email with the following subject:

And the following content:

"Thank you for contacting Iberia.

We apologise for any inconvenience caused.

We have received your complaint and our team will now analyse it and send you a reply within 7 business days.

Iberia Customer Services"

[Unofficial translation:

"Gracias por contactar con Iberia.

Lamentamos cualquier inconveniente causado.

Hemos recibido su reclamación y nuestro equipo la analizará y le enviará una respuesta dentro de los próximos 7 días laborales.

Atención al Cliente de Iberia”]

- Email dated June 20, 2021 sent from ***EMAIL.2 to the claimant's email with the following subject:
And the following content:

“Dear A.A.A.,

We are writing in relation to flight ***VUELO.1 of ***FECHA.1.

With regard to travel documentation, airlines are not subject to the requirements of the government authorities of each country, which in certain cases may require, in addition to identification documents, a hotel reservation, a return ticket or any other specific condition. To avoid situations where you may be prevented from travelling by the immigration department in the country of departure, transit or destination, it is important to ensure that you have the necessary documentation for your complete itinerary. We must confirm at the airport of departure that the passengers have all the documents required by the authorities.

Kind regards.

Iberia Customer Services”

[Unofficial translation:

“Estimado A.A.A.,

Le escribimos en relación a su vuelo ***VUELO.1 del ***FECHA.1.

Con respecto a la documentación de viaje, las aerolíneas no están sujetas a los requisitos de las autoridades gubernamentales de cada país, que en ciertos casos pueden requerir, además de documentos de identificación, una reserva de hotel, un billete de regreso o cualquier otra condición específica. Para evitar situaciones en las que se le impida viajar por el departamento de inmigración en el país de partida, tránsito o destino, es importante asegurarse de que tiene la documentación necesaria para su itinerario completo. Debemos confirmar en el aeropuerto de salida que los pasajeros tienen todos los documentos requeridos por las autoridades.

Saludos cordiales,

Atención al Cliente de Iberia”]

- Printout of an email dated June 22, 2021 sent from the claimant's email to OficinaDPO@iberia.es with the subject “Use of my Personal Data and Information by Iberia Airlines” [Unofficial translation: “Uso de mis datos personales e información por Aerolíneas Iberia”] and the following content:

“Hi there,

My husband and I were refused check-in on an Iberia flight from Quito to Madrid on May 31st of this year. The reason we were refused check-in was that my husband has a US passport and the check-in staff said Iberia couldn't allow an American to travel to Europe for tourism. I let the check-in staff know that we were married and that we were traveling for family matters and to relocate to Ireland vs. being a tourist in Ireland. Iberia check-in staff then asked for proof of marriage. We showed them our New York state marriage certificate, but this was rejected on the spot as appropriate proof of marriage. We were asked to go to the Iberia Office in Quito Airport to continue the conversation and get approval for our flight.

The Iberia staff member in the Quito airport back office took copies of my Irish passport, my husband's American passport and our New York state marriage certificate. We understood that Iberia staff in Quito were going to send copies of these to Madrid Airport Police to get approval for us to fly or stop us from flying.

We ultimately were permitted to check in and to take our flight, but I want to understand what the communication was between Iberia in Ecuador and The Airport Police in Madrid. I want to understand how my data was used by Iberia and to what end. I want to understand what the communication was around the refusal to let us check-in. I want to see the feedback from Madrid Airport Police around our permission to travel.

The Iberia Privacy Policy states 'We will be transparent about the information we are collecting and what we will do with it' I have not found this to be the case. I have requested this data four times through the Iberia customer complaint channel (...) and although I've received four responses, all were

lacking specific details. I still don't know why I had to share this information with Iberia, how my data was used and what was the outcome of this communication.

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I would appreciate it if you can provide this information to me.

Best Regards,
A.A.A.”

“Hello,

My husband and I were denied check-in for an Iberia flight from Quito to Madrid on May 31 of this year. The reason we were denied check-in was that my husband has a U.S. passport and the check-in staff said that Iberia could not allow a U.S. citizen to travel to Europe for tourism. I informed the check-in staff that we were married and that we were traveling for family matters and to move to Ireland rather than being tourists in Ireland. Subsequently, the Iberia check-in staff requested proof of marriage. We showed them our marriage certificate from the state of New York, but this was immediately rejected as appropriate proof of marriage. We were asked to go to the Iberia office at the Quito airport to continue the conversation and obtain approval for our flight.

The Iberia staff member in the back office at the Quito airport took copies of my Irish passport, my husband's American passport, and our marriage certificate from the state of New York. We understood that the Iberia staff in Quito were going to send copies of these to the Madrid Airport Police to obtain approval to fly or to stop us from flying.

Ultimately, we were allowed to check in and take our flight, but I want to understand what the communication was between Iberia in Ecuador and the Madrid Airport Police. I want to understand how my data was used by Iberia and for what purpose. I want to understand what the communication was regarding the denial of our check-in. I want to see the comments from the Madrid Airport Police regarding our permission to travel.

Iberia's Privacy Policy states: “We will be transparent about the information we are collecting and what we will do with it,” but this does not seem to be the case. I have requested this data four times through Iberia's customer complaint channel (...) and although I have received four responses, all lacked specific details. I still do not know why I had to share this information with Iberia, how my data was used, and what the outcome of this communication was.

I would appreciate it if you could provide this information to me.

Best regards,
A.A.A.”]

- Email dated June 23, 2021, sent by ***EMAIL.2 to the claimant's email with the following subject:

And the following content:

“Thank you for contacting Iberia.

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We apologise for any inconvenience caused.

We have received your complaint and our team will now analyse it and send you a reply within 7 business days.

Iberia Customer Services”

[Unofficial translation:

“Thank you for contacting Iberia.

We apologise for any inconvenience caused.

We have received your complaint and our team will analyse it and send you a response within the next

7 business days.

Iberia Customer Service”]

- Email dated June 24, 2021, sent by ***EMAIL.2 to the claimant's email with the following subject:

And the following content:

“Dear A.A.A.,

Thank you for sending us your comments again.

However, please note that after reviewing your case, and given the circumstances of the incident, we must repeat the resolution we offered in our previous communication.

We apologise once again, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Iberia Customer Services”

[Unofficial translation:

“Dear A.A.A.,

Thank you for sending us your comments again.

However, please note that after reviewing your case, and given the circumstances of the incident, we must repeat the resolution we offered in our previous communication.

We apologise once again, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Iberia Customer Service”]

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SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned issue was transmitted on February 17, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) the following day. The transfer of this matter to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that IBERIA has its main establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, acting as “interested supervisory authority,” in addition to the data protection authority of Ireland, are the authorities of Belgium, Norway, Denmark, France, Portugal, Hungary, Austria, Finland, and the German authorities of Rhineland-Palatinate, Lower Saxony, Berlin, and Bavaria-Private Sector. All of them under Article 4.22 of the GDPR, given that the individuals residing in the territories of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On May 10, 2022, in accordance with the then-current Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On October 24, 2022, a written response to a request for information was received by this Agency, submitted on behalf of IBERIA, with entry registration number ***ENTRADA.1, in which the following information was provided, among others:

1. Indication that the regulation on the protection of personal data has not been violated.
2. Indication that “at no time was it their intention not to respond to the requests made by” the complainant, “but that an error was made in interpreting them” since “IBERIA understood that...

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The claims filed were not specifically based on a right of access, but rather were grounded in a request for payment made in relation to the billing of carry-on luggage” ... “In addition to the above, it was interpreted that the desire to know why the documentation was requested was not precisely based on an exercise of rights in relation to the current regulations on data protection, but rather an exclusive customer service matter.”

3. Indication that, regarding the data provided by the claimant to IBERIA staff at the Quito airport, “the data was never sent to the CPS nor stored by said center, and was immediately deleted from the devices used to carry out the necessary checks,” and that, in this regard, IBERIA sent a response to the claimant on October 21, 2022, and an impression of this email sent by the DPO Office to the claimant dated October 21, 2022, with the subject “Use of my personal data and information by Iberia Airlines” [Unofficial Translation: “Uso de mis datos personales e información por Aerolíneas Iberia”] and the following content:

“Dear A.A.A.,

We hope this message finds you well.

We are hereby writing in reply to your request for information, specifically,

First of all we would like to acknowledge with you that indeed we received your past requests for information in this regard, but sadly, as they were received as customer complaints through our online webform for this type of cases, and not as data subject right exercise request –which can be made via a different available online webform too- we might have not been able to provide such a proper, complete and accurate answer as we should have. For this, we hereby humbly and deeply apologise with you for any discontent or inconvenience we might have caused you.

Secondly, in the belief that you deserve a proper reply and assuming that you still might be interested in receiving the explanations you were asking us for, we kindly request that you let us inform you as follows:

- You may recall that by May 2021, many travel restrictions to try to avoid the spread of SARS-CoV-2 were still in force and/or under constant evolution or change. These travel restrictions usually were related not only to the origin of a flight, but also to the nationality of the passenger/s. Your case involved, as you already said in your claims in the past, documentation originated in three different jurisdictions which is significantly far from the standard cases of documents review our handling personnel in Quito airport was used to.

- For this reason, and following internal standard procedure for cases like this, they asked you to allow them to take a picture of your travel documentation so that they might consult with Iberia’s internal Permanent Security Centre (“Centro Permanente de Seguridad” or “CPS”) and CPS could eventually review and confirm whether or not your documentation allowed you both to fly with Iberia to your final travel destination. In this regard, CPS works as a second level helpdesk for this type of issues.

- Nevertheless, according to our handling personnel in Quito, in your case consulting with CPS was finally NOT NECESSARY, because they were able to check and confirm locally with another member of their staff that you were both able to travel with the documents you showed. Therefore, there was no need to send your documentation to CPS for review.

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- Lastly, in accordance with Iberia internal standard procedures, once your case was reviewed and assessed, the pictures of your documents were DELETED from the devices they were taken with.

I hope this information and explanations, late as they might have been submitted to you, may help you to resolve the queries you have been posing to us in your different claims.

Anyhow, should you still have any further queries or doubts on this matter we kindly ask you to please transmit them to us directly by replying to this email or writing to oficinadpo@iberia.es, where we will do our best to provide any necessary explanation.

Yours faithfully,

Oficina de Protección de Datos

Data Protection Office”

[Unofficial Translation:

“Dear A.A.A.

We hope this message finds you well.

We are writing to you in response to your request for information, specifically,

First of all, we would like to acknowledge with you that we have indeed received your previous requests for information in this regard, but unfortunately, since they were received as customer complaints through our online web form for such cases, and not as a request to exercise the rights of the data subject, which can also be made through a different online web form, it is possible that we were unable to provide an adequate, complete, and precise response as we should have. For this, we humbly and deeply apologize to you for any dissatisfaction or inconvenience we may have caused you.

Secondly, in the belief that you deserve an adequate response and assuming that you may still be interested in receiving the explanations you were asking for, we kindly ask you to allow us to inform you as follows:

- You may recall that in May 2021, many travel restrictions aimed at preventing the spread of SARS-CoV-2 were still in effect or constantly evolving or changing. These travel restrictions were generally related not only to the origin of a flight but also to the nationality of the passenger(s). In your specific case, as you have already stated in your previous claims, the documentation originated in three different jurisdictions, which is significantly different from the standard cases of document review that our staff is accustomed to at the Quito airport.
- For this reason, and following the internal standard procedure for cases like this, you were asked to allow them to take a photo of your travel documentation so that they could consult with Iberia's Permanent Security Center (CPS) and CPS could at that moment review and confirm whether your documentation allowed both of you to fly with Iberia to your final destination. In this regard, CPS functions as a second-level customer service for such issues.
- However, according to our staff in Quito, in your case, the consultation with CPS was ultimately NOT NECESSARY, as they were able to verify and confirm locally with another member of their staff that both could travel with the documents you presented. Therefore, there was no need to send your documentation to CPS for review.

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- Finally, in accordance with Iberia's internal procedures, once your case was reviewed and evaluated, the images of your documents were extracted from the devices with which they were taken.

I hope that this information and explanations, although they could have been sent to you earlier, can help you resolve the queries you are raising in your various claims.

In any case, if you still have any questions or doubts regarding this matter, we kindly ask you to communicate them directly by replying to this email or writing to OficinaDPO@iberia.es, where we will do our best to provide any necessary explanations.”

4. A search was conducted for the company IBERIA LÍNEAS AÉREAS DE ESPAÑA, SOCIEDAD ANÓNIMA OPERADORA in the Monitoriza service of Axesor (<https://monitoriza.axesor.es/>) on March 22, 2023, obtaining that this company was of the type “...” and, in the fiscal year 2020, had

***CANTIDAD.1 employees and sales of ***CANTIDAD.2.

FIFTH: On May 4, 2023, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on May 8, 2023, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to raise pertinent and justified objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the then-applicable LOPDGDD.

Within the deadline for this purpose, the interested supervisory authorities did not present pertinent and justified objections in this regard, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

This draft decision, which was notified to IBERIA in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on May 5, 2023, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On September 7, 2023, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against IBERIA in order to impose a fine of 50,000 euros, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR, in which it was indicated that IBERIA had a period of ten days to present allegations.

This initiation agreement, which was notified to IBERIA in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on September 12, 2023, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On September 26, 2023, IBERIA submitted to the Agency a file in .pdf format named "DOC_1_CAC_GDPR_GUIA_PROCESO_PASAJE_ESTANDAR.pdf" and in the "Observations" field of the record it was completed: "DOC 1 GUIA BASICA GDPR SERV ATENCION AL CLIENTE." But without providing further explanations in this regard.

EIGHTH: On October 5, 2023, the instructing body of the procedure agreed to grant a new period of allegations of five working days, which was notified to IBERIA on October 6, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: On October 17, 2023, a letter from IBERIA was received at this Agency in which it raised allegations against the initiation agreement. In these allegations, in summary, it stated that: the amount set in relation to the assessed infringement was not proportional and that the classification of the infringement in relation to the events that occurred was not correct.

Along with the allegations, a file named

"DOC_1_CAC_GDPR_GUIA_PROCESO_PASAJE_ESTANDAR.pdf" was submitted.

TENTH: According to the diligence carried out on January 26, 2024, in the privacy policy of IBERIA in force from June 25, 2020, to July 5, 2021 (<https://www.iberia.com/es/informacion-sobre-privacidad/>) it was indicated that: "Throughout the Privacy Policy, you will find a series of specific examples of why and how we use your personal data. If you have any questions, please contact us by writing to our Data Protection Office via email at OficinaDPO@iberia.es."

ELEVENTH: A list of documents in the procedure is attached as an annex.

PROVEN FACTS

FIRST: On June 2, 2021, the claimant received an email sent by ***EMAIL.2 to ***EMAIL.1 with the following subject:

And the following content:

"Dear A.A.A.,

Thank you for your notification regarding flight ***VUELO.1 of ***FECHA.1.

As Iberia employees, we strive at all times to help customers and offer solutions for all eventualities. However, it is clear from your comments that on this occasion there was a lack of professionalism on

our part. We would ask you to treat this as an exceptional occurrence, and please be assured that we have referred the incident to the person

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concerned so that they may take the necessary measures to avoid this type of behaviour in the future. Regarding the payment for your extra bag, we want to inform you that baggage allowances are based on the fare paid for tickets, the cabin class in which the passenger is travelling and the degree of customer loyalty.

Before buying a ticket, you should check the baggage allowance included. This will also be stated on the receipt we provide. Once a ticket has been purchased, we offer passengers the option of adding more items of baggage, either through the vouchers available on our website www.iberia.com or through payment of the excess directly at the airport.

In this particular case, we have checked that the allowance allocated to you was correct and the process followed was therefore correct as well.

We apologise for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,
Customer Relations”

[Unofficial Translation:

“Estimado A.A.A.,

Gracias por su notificación sobre el vuelo ***VUELO.1 del ***FECHA.1.

Como empleados de Iberia, nos esforzamos en todo momento para ayudar a los clientes y ofrecer soluciones para todas las eventualidades.

Sin embargo, de sus comentarios se desprende claramente que en esta ocasión hubo una falta de profesionalidad por nuestra parte. Le pedimos que trate esto como un hecho excepcional, y tenga la seguridad de que hemos remitido el incidente a la persona interesada para que pueda tomar las medidas necesarias para evitar este tipo de comportamiento en el futuro.

En cuanto al pago de su equipaje extra, queremos informarle que las franquicias de equipaje se basan en la tarifa pagada por los billetes, la clase de cabina en la que viaja el pasajero y el grado de lealtad del cliente.

Antes de comprar un billete, debe comprobar la franquicia de equipaje incluida. Esto también se indicará en el recibo que proporcionamos. Una vez adquirido un billete, ofrecemos a los pasajeros la opción de añadir más artículos de equipaje, ya sea a través de los vales disponibles en nuestra página web www.iberia.com o mediante el pago del exceso directamente en el aeropuerto.

En este caso particular, hemos comprobado que la asignación asignada a usted era correcta y, por lo tanto, el proceso seguido también fue correcto.

Nos disculpamos por este incidente, y confiamos en que tendrá una experiencia satisfactoria la próxima vez que vuele con nosotros.

Saludos cordiales,
Relaciones con el cliente”]

SECOND: On June 3, 2021, the claimant sent an email from ***EMAIL.1 to ***EMAIL.2, in response to the previous one, stating the following:

“Hi there,

Thank you for your reply.

(...)

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As mentioned in my first communication, I would like to understand what the communication was between Iberia and The Madrid Airport Police. After we were turned away from check-in and directed to the Iberia office to prove our marriage, the Iberia Quito team took our passports and marriage certificate to share with Madrid Airport police to see if they would let us fly back to Ireland. I want to know how our data was used, that this communication actually happened and what the output of this communication was. Can you please follow up internally to get this information and feed this back to us.

Best Regards,

A.A.A.

***TELEFONO.1”

[Unofficial Translation:

“Hola,

Gracias por su respuesta.

(...)

Como mencioné en mi primera comunicación, me gustaría entender cuál fue la comunicación entre Iberia y la Policía del Aeropuerto de Madrid. Después de que nos rechazaran en el check-in y nos dirigieran a la oficina de Iberia para probar nuestro matrimonio, el equipo de Iberia Quito tomó nuestros pasaportes y certificado de matrimonio para compartirlos con la policía del aeropuerto de Madrid para ver si nos dejarían volar de regreso a Irlanda. Quiero saber cómo se utilizaron nuestros datos, que esta comunicación realmente sucedió y cuál fue el resultado de esta comunicación. Por favor, haga un seguimiento interno para obtener esta información e infórmenos.

Saludos cordiales,

A.A.A.

***TELEFONO.1”]

THIRD: On June 7, 2021, the claimant received an email forwarded by ***EMAIL.2 with the following header:

And the following content:

“Dear A.A.A.,

Thank you for contacting us about the charge for your baggage on flight ***VUELO.1 on ***FECHA.1, from Quito to Madrid.

We appreciate that you were inconvenienced by this. Airlines are entitled to establish their own policies regarding baggage allowances based on the fare paid for tickets, the cabin class in which the passenger is travelling and the degree of customer loyalty.

In this particular case, we have checked that the allowance allocated to you was correct and the process followed was therefore correct as well. Even though your bag

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was cabin size, if it weighs more than 10 Kgs, it will be treated and charged as a bag on hold.

We apologise for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Customer Relations”

[Unofficial Translation:

Dear A.A.A.,

Thank you for contacting us regarding the charge for your luggage on flight ***FLIGHT.1 on ***DATE.1, from Quito to Madrid.

We understand that this has upset you. Airlines have the right to establish their own policies regarding baggage allowances based on the fare paid for tickets, the cabin class in which the passenger is traveling, and the degree of customer loyalty.

In this particular case, we have verified that the allocation assigned to you was correct and, therefore, the process followed was also correct. Although your bag was cabin size, if it weighs more than 10 Kgs, it will be treated and charged as a bag on hold.

We apologise for this incident, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Customer Relations"]

FOURTH: On June 18, 2021, the claimant received an email from ***EMAIL.2 with the following subject:

And the following content:

"Thank you for contacting Iberia.

We apologise for any inconvenience caused.

We have received your complaint and our team will now analyse it and send you a reply within 7 business days.

Iberia Customer Services"

[Unofficial Translation:

"Thank you for contacting Iberia.

We apologise for any inconvenience caused.

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We have received your complaint and our team will analyse it and send you a reply within the next 7 business days.

Iberia Customer Services"]

FIFTH: On June 20, 2021, the claimant received an email from ***EMAIL.2 with the following subject:

And the following content:

"Dear A.A.A.,

We are writing in relation to flight ***FLIGHT.1 of ***DATE.1.

With regard to travel documentation, airlines are not subject to the requirements of the government authorities of each country, which in certain cases may require, in addition to identification documents, a hotel reservation, a return ticket or any other specific condition. To avoid situations where you may be prevented from travelling by the immigration department in the country of departure, transit or destination, it is important to ensure that you have the necessary documentation for your complete itinerary. We must confirm at the airport of departure that the passengers have all the documents required by the authorities.

Kind regards.

Iberia Customer Services"

[Unofficial Translation:

"Dear A.A.A.,

We are writing in relation to your flight ***FLIGHT.1 of ***DATE.1.

With regard to travel documentation, airlines are not subject to the requirements of the government authorities of each country, which in certain cases may require, in addition to identification documents, a hotel reservation, a return ticket or any other specific condition. To avoid situations where you may be prevented from travelling by the immigration department in the country of departure, transit or destination, it is important to ensure that you have the necessary documentation for your complete itinerary. We must confirm at the airport of departure that the passengers have all the documents required by the authorities.

Kind regards,

Iberia Customer Services"]

SIXTH: On June 22, 2021, the claimant sent an email to OficinaDPO@iberia.es with the subject "Use

of my Personal Data and Information by Iberia Airlines” [Unofficial Translation: “Uso de mis datos personales e información por Aerolíneas Iberia”] and the following content:

“Hi there,

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My husband and I were refused check-in on an Iberia flight from Quito to Madrid on May 31st of this year. The reason we were refused check-in was that my husband has a US passport and the check-in staff said Iberia couldn't allow an American to travel to Europe for tourism. I let the check-in staff know that we were married and that we were traveling for family matters and to relocate to Ireland vs. being a tourist in Ireland. Iberia check-in staff then asked for proof of marriage. We showed them our New York state marriage certificate, but this was rejected on the spot as appropriate proof of marriage. We were asked to go to the Iberia Office in Quito Airport to continue the conversation and get approval for our flight.

The Iberia staff member in the Quito airport back office took copies of my Irish passport, my husband's American passport, and our New York state marriage certificate. We understood that Iberia staff in Quito were going to send copies of these to Madrid Airport Police to get approval for us to fly or stop us from flying.

We ultimately were permitted to check in and to take our flight, but I want to understand what the communication was between Iberia in Ecuador and The Airport Police in Madrid. I want to understand how my data was used by Iberia and to what end. I want to understand what the communication was around the refusal to let us check-in. I want to see the feedback from Madrid Airport Police around our permission to travel.

The Iberia Privacy Policy states 'We will be transparent about the information we are collecting and what we will do with it.' I have not found this to be the case. I have requested this data four times through the Iberia customer complaint channel (...) and although I've received four responses, all were lacking specific details. I still don't know why I had to share this information with Iberia, how my data was used, and what was the outcome of this communication.

I would appreciate it if you can provide this information to me.

Best Regards,

A.A.A.

“Hello,

My husband and I were refused check-in on an Iberia flight from Quito to Madrid on May 31st of this year. The reason we were refused check-in was that my husband has a US passport and the check-in staff said Iberia couldn't allow an American to travel to Europe for tourism. I let the check-in staff know that we were married and that we were traveling for family matters and to relocate to Ireland vs. being a tourist in Ireland. Iberia check-in staff then asked for proof of marriage. We showed them our New York state marriage certificate, but this was rejected on the spot as appropriate proof of marriage. We were asked to go to the Iberia Office in Quito Airport to continue the conversation and get approval for our flight.

The Iberia staff member in the back office of Quito airport took copies of my Irish passport, my husband's American passport, and our New York state marriage certificate. We understood that Iberia staff in Quito were going to send copies of these to the Madrid Airport Police to get approval for us to fly or stop us from flying.

Ultimately, we were allowed to check in and take our flight, but I want to understand what the communication was between Iberia in Ecuador and the Madrid Airport Police. I want to understand how my data was used by Iberia and for what purpose. I want to understand what the communication was regarding the refusal to let us check in. I want to see the comments from the Madrid Airport Police regarding our permission to travel.

The Iberia Privacy Policy states: 'We will be transparent about the information we are collecting and what we will do with it,' but I do not find this to be the case. I have requested this data four times

through the Iberia customer complaint channel (...) and although I have received four responses, all lacked specific details. I still do not know why I had to share this information with Iberia, how my data was used, and what the outcome of this communication.

I would appreciate it if you could provide me with this information.

Best regards,

A.A.A.”

SEVENTH: On June 23, 2021, the complainant receives an email from ***EMAIL.2 with the following subject:

And the following content:

“Thank you for contacting Iberia.

We apologize for any inconvenience caused.

We have received your complaint and our team will now analyze it and send you a reply within 7 business days.

Iberia Customer Services”

[Unofficial Translation:

“Thank you for contacting Iberia.

We apologize for any inconvenience caused.

We have received your complaint and our team will analyze it and send you a response within the next 7 business days.

Iberia Customer Service”]

EIGHTH: On June 24, 2021, the complainant receives an email from ***EMAIL.2 with the following subject:

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And the following content:

“Dear A.A.A.,

Thank you for sending us your comments again.

However, please note that after reviewing your case, and given the circumstances of the incident, we must repeat the resolution we offered in our previous communication.

We apologise once again, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Iberia Customer Services”

[Unofficial translation:

Dear A.A.A.,

Thank you for sending us your comments again.

However, please note that after reviewing your case, and given the circumstances of the incident, we must repeat the resolution we offered in our previous communication.

We apologise once again, and we trust that you will have a satisfactory experience the next time you fly with us.

Kind regards,

Iberia Customer Services”]

NINTH: On October 21, 2022, the IBERIA DPO Office sent an email to the claimant with the subject “Use of my personal data and information by Iberia Airlines” [Unofficial translation: “Uso de mis datos personales e información por Aerolíneas Iberia”] and the following content:

“Dear A.A.A.,

We hope this message finds you well.

We are hereby writing in reply to your request for information, specifically,

First of all, we would like to acknowledge with you that indeed we received your past requests for information in this regard, but sadly, as they were received as customer complaints through our online

webform for this type of cases, and not as data subject right exercise request –which can be made via a different available online webform too- we might have not been able to provide such a proper, complete and accurate answer as we should have. For this, we hereby humbly and deeply apologise with you for any discontent or inconvenience we might have caused you.

Secondly, in the belief that you deserve a proper reply and assuming that you still might be interested in receiving the explanations you were asking us for, we kindly request that you let us inform you as follows:

- You may recall that by May 2021, many travel restrictions to try to avoid the spread of SARS-CoV-2 were still in force and/or under constant evolution or change. These travel restrictions usually were related not only to the origin of a flight, but also to the nationality of the passenger/s. Your case involved, as you already said in your claims in the past, documentation originated in three different jurisdictions which is significantly

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far from the standard cases of document review our handling personnel in Quito airport was used to.

- For this reason, and following internal standard procedure for cases like this, they asked you to allow them to take a picture of your travel documentation so that they might consult with Iberia's internal Permanent Security Centre ("Centro Permanente de Seguridad" or "CPS") and CPS could eventually review and confirm whether or not your documentation allowed you both to fly with Iberia to your final travel destination. In this regard, CPS works as a second-level helpdesk for this type of issue.

- Nevertheless, according to our handling personnel in Quito, in your case consulting with CPS was finally NOT NECESSARY, because they were able to check and confirm locally with another member of their staff that you were both able to travel with the documents you showed. Therefore, there was no need to send your documentation to CPS for review.

- Lastly, in accordance with Iberia internal standard procedures, once your case was reviewed and assessed, the pictures of your documents were DELETED from the devices they were taken with.

I hope this information and explanations, late as they might have been submitted to you, may help you to resolve the queries you have been posing to us in your different claims.

Anyhow, should you still have any further queries or doubts on this matter, we kindly ask you to please transmit them to us directly by replying to this email or writing to oficinadpo@iberia.es, where we will do our best to provide any necessary explanation.

Yours faithfully,

Oficina de Protección de Datos

Data Protection Office

[Unofficial Translation:

"Dear A.A.A.

We hope this message finds you well.

We are writing to you in response to your request for information, specifically,

First of all, we would like to acknowledge with you that we have indeed received your previous requests for information regarding this matter, but unfortunately, as they were received as customer complaints through our online web form for such cases, and not as a request to exercise the rights of the data subject, which can also be done through a different online web form, it is possible that we were unable to provide an adequate, complete, and precise response as we should have. For this, we humbly and deeply apologize to you for any dissatisfaction or inconvenience we may have caused you.

Secondly, believing that you deserve an adequate response and assuming that you may still be interested in receiving the explanations you were asking for, we kindly ask you to allow us to inform you as follows:

- You may recall that, in May 2021, many travel restrictions aimed at preventing the spread of SARS-CoV-2 were still in effect or in constant evolution or change. These travel restrictions were

generally related not only to the origin of a flight but also to the nationality of the passenger(s). In your specific case, as you have already stated in your previous claims, the documentation originated from three different jurisdictions, which is significantly different from the standard cases of document review that our staff at Quito airport is accustomed to.

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”]

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- For this reason, and following the internal standard procedure for cases like this, they asked you to allow them to take a photo of your travel documentation so that they could consult with the Iberia Permanent Security Center (CPS), and CPS could at that moment review and confirm whether your documentation allowed both of you to fly with Iberia to your final destination. In this regard, CPS functions as a second-level user support service for such issues.

- However, according to our staff in Quito, in your case, the consultation with CPS was ultimately NOT NECESSARY, because they were able to verify and confirm locally with another member of their staff that both of you could travel with the documents you showed. Therefore, there was no need to send your documentation to CPS for review.

- Finally, in accordance with Iberia's internal procedures, once your case was reviewed and assessed, the images of your documents were extracted from the devices with which they were taken.

I hope that this information and explanations, although they could have been sent to you earlier, can help you resolve the inquiries you are raising in your various claims.

In any case, if you still have any questions or doubts regarding this matter, please send them directly to us by replying to this email or writing to OficinaDPO@iberia.es, where we will do our best to provide any necessary explanation.”

TENTH: IBERIA AIRLINES OF SPAIN, PUBLIC LIMITED COMPANY is a company of type “...” and, in the year 2020, it had ***AMOUNT.1 employees and sales of ***AMOUNT.2.

ELEVENTH: In the privacy policy of IBERIA in effect from June 25, 2020, to July 5, 2021 (<https://www.iberia.com/es/informacion-sobre-privacidad/>) it was stated that: “Throughout the Privacy Policy, you will find a series of specific examples of why and how we use your personal data. If you have any questions, please contact us by writing to our Data Protection Office via email at OficinaDPO@iberia.es.”

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as IBERIA collects and retains, among others, the following personal data of individuals: name and surname and email address, among other processing activities.

IBERIA carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Additionally, this is a cross-border processing, given that IBERIA is established in Spain, although it provides services to

other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), in relation to the competence of the main supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the main supervisory authority for the cross-border processing carried out by that controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, IBERIA has its main establishment in Spain, so the Spanish Agency for Data Protection is competent to act as the main supervisory authority. On its part, Article 15 of the GDPR regulates the right of access of data subjects to their personal data.

III

Claims made

In relation to the claims made regarding the initiation agreement of this sanctioning procedure, responses are provided according to the order presented by IBERIA:

FIRST. – ON THE LACK OF PROPORTIONALITY OF THE AMOUNT SET IN RELATION TO THE ASSESSED INFRACTION.

Firstly, IBERIA claims that, at the time the reported events took place, that is, in June 2021, there was a global crisis related to the pandemic caused by SARS-CoV-2 (COVID-19), which had devastating effects at all levels, including, among others, the passenger air transport sector on which the Company operates.

Secondly, IBERIA claims that:

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- Between May 2021 and October 2022, through IBERIA's online claims channel (which aims to address and resolve travel or service incidents – cancellations, delays, denied boarding, baggage issues, etc. – and does not respond to requests for the exercise of rights under the GDPR), more than 379,077 claims have been processed. At this point, it is noteworthy that customers often use the forms and email addresses linked to Customer Service without considering the possibility of making certain requests through the specific mechanisms provided for that purpose.

- Between May 2021 and October 2022, more than 14,696 requests have been received and properly addressed through a specific online form enabled for the exercise of the rights recognized in Articles 15 to 22 of the GDPR. Furthermore, it is important to highlight that requests made by data subjects in 2022 increased by 312% compared to the previous year.

In light of the above, IBERIA indicates that it is evident that there has been a significant increase in data protection requests from IBERIA customers, which have been largely addressed satisfactorily for the data subjects. However, the volume of requests means that it is impossible to avoid errors in some of the management operations that may occur in the course of daily activities. Nevertheless, in order to minimize such errors as much as possible, the following points are emphasized:

1. IBERIA staff have access, through the Company's intranet, to training on the procedure for exercising rights under the GDPR, which provides the necessary guidance for proper handling. This procedure is provided when the employee joins the staff and is refreshed – along with updated content – biennially. Such circumstances are evidenced by the following screenshots:

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2. Additionally, an executive guide has been developed so that the customer service department can access information related to the exercise of rights, emphasizing the proper transfer that must be made to the DPO Office in the event that requests are made through that channel. This guide is provided as DOCUMENT NUMBER 1.

3. Best efforts are made to achieve the highest degree of transparency possible, keeping the privacy policy duly documented and updated, which is available to all our users and customers. Since the implementation of the GDPR in 2018, the Company has updated its policy on 7 occasions.

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Source: Screenshot from IBERIA's website www.iberia.com.

In this regard, this Agency wishes to point out that it does not deny the effects caused by the pandemic resulting from SARS-CoV-2 (COVID-19), nor the high number of claims that IBERIA has addressed between May 2021 and October 2022, nor that measures have been adopted by IBERIA.

Rather, the object of this procedure is the possible infringement by IBERIA of Article 15 of the GDPR for not having properly addressed the exercise of the right of the claimant. Therefore, this allegation is dismissed.

IBERIA continues to argue that all of the above highlights, in IBERIA's opinion, the great commitment in this matter that all areas of the Company have undertaken, but certainly does not prevent certain actions from not being carried out in accordance with established procedures, adequately enabled channels, or, as is the case, that there is an error in the interpretation of the requests made. As already stated in the information request carried out by this Agency, it has never been IBERIA's intention to not address the right recognized in Article 15 of the GDPR, but rather that there was an error in understanding the request made in the sense that it was believed that the user wanted to know why such actions were being carried out when making a stopover on their journey.

IBERIA claims that, as a demonstration of the Company's efforts and best practices to achieve the highest possible degree of trust and satisfaction from its customers, more than one response has been given to the claimant when they have addressed a mailbox specified as "IBERIA No-Reply," so it cannot be deemed appropriate to specify that IBERIA's intention has been to prevent or hinder the exercise of rights, but rather: i) firstly, and despite everything, responses have been made to the emails sent to that address in good faith; and ii) unfortunately, there has been an inadequate interpretation of a request, among many thousands, which has led to improper management of it. This incorrect exegesis, as has been duly evidenced, has been resolved as a consequence of the information request from the AEPD, but it cannot be concluded, given the data presented above, that it has aimed to obstruct, avoid responding, or make it impossible to provide the requested information to the data subject.

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me when there was no type of impediment for it, since as was explained to the claimant, the data was never sent to the Police in Spain (as the claimant had apparently interpreted when the events occurred), nor were they ultimately sent to the Permanent Security Center (CPS) of IBERIA in Madrid (second-level helpdesk for inquiries regarding travel documentation for external handling agencies providing services to IBERIA outside of Spain) as it was not necessary, nor were they stored by said center or by the agency at the point of origin where the photos of the documentation were taken, proceeding to the immediate deletion of the same on the devices on which those photos were taken, this deletion being carried out in accordance with the data deletion procedure provided as Document Number 2 of our previous writing.

In this regard, this Agency wishes to point out that it has not been considered that IBERIA acted with intent by not properly addressing the exercise of the claimant's right of access, but rather it is understood that it should have been more diligent to prevent an error like the one in this case, the existence of which IBERIA itself has acknowledged.

It should also be noted that this Agency has not received the aforementioned Document Number 2 mentioned in the statement of allegations. However, it is not disputed in this case that IBERIA sent the claimant's data to the CPS of IBERIA nor that the data was stored in said center or at the point of origin

or that the data was not deleted, but rather that the issue is that information was not provided to the claimant regarding what IBERIA had done with their data. No more, no less. Therefore, this allegation is dismissed.

Furthermore, IBERIA brings to attention what is established by the European Data Protection Board (hereinafter, the “EDPB”) in its Guidelines 01/2022 on the rights of data subjects, as it has pointed out that all requests related to the exercise of the right of access that are made through random or incorrect addresses, or through any communication channel that is clearly not intended to receive requests related to the rights of the data subject, will not be obligatory to address (translation provided):

“54. It should be noted that the data controller is not obliged to process a request sent to a random or incorrect electronic (or postal) address, not directly provided by the data controller, or to any communication channel that is clearly not intended to receive requests related to the rights of the data subject if the data controller has provided an appropriate communication channel that can be used by the data subject.”

In this regard, this Agency wishes to highlight the entire content of the section cited by IBERIA (in English the original, unofficial translation):

“53. The EDPB encourages data controllers to provide the most appropriate and user-friendly communication channels, in accordance with Article 12, paragraph 2, and Article 25 of the GDPR, so that the data subject can submit an effective request. However, if a data subject submits a request using a communication channel provided by the data controller that is different

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As indicated as preferable, such request will be considered, in general, effective and the data controller must process such request accordingly (...). Data controllers must make all reasonable efforts to ensure that the exercise of the rights of data subjects is facilitated (for example, when a data subject sends a request for access to an employee who is on leave, an automatic message informing the data subject about an alternative communication channel for this request could be a reasonable effort).”

As a footnote, it is clarified that this “may include, for example, the contact details of the data controller provided in their communications directed directly to the data subjects or the contact details publicly provided by the data controller, such as in the data controller's privacy policy or other mandatory legal notices of the data controller (for example, contact information of the owner or company on a website).”

The cited Guidelines continue:

“54. It should be noted that the data controller is not obliged to act on a request sent to a random or incorrect email address (or postal address), not directly provided by the data controller, or to any communication channel that is clearly not intended to receive requests related to the rights of the data subject if the data controller has provided an appropriate communication channel that can be used by the data subject.

55. The data controller is also not obliged to respond to a request sent to the email address of an employee of the data controller who may not be involved in processing requests related to the rights of data subjects (for example, drivers, cleaning staff, etc.). Such requests will not be considered effective if the data controller has clearly provided the data subject with an appropriate communication channel. However, if the data subject sends a request to the employee of the data controller who has been assigned as their usual contact person (for example, a personal manager's account at a bank or a regular consultant at a mobile operator), such contact should not be considered random and the data controller must make all possible efforts to process such request so that it can be redirected to the contact point and responded to within the timeframes established by the GDPR.

56. Nevertheless, the EDPB recommends, as good practice, that data controllers implement appropriate mechanisms to facilitate the exercise of the rights of data subjects, including

autoresponder systems to inform about staff absences and appropriate alternative contacts and, as far as possible, mechanisms to improve internal communication among employees regarding requests received by those who may not be competent to process such requests.”

In this case, the claiming party has exercised their right of access to their personal data through IBERIA's customer service on numerous occasions in June 2021. It cannot be considered in any way that this is a “random or incorrect” address for their request.

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In this regard, this Agency insists that communicating with a company's customer service is a perfectly valid avenue for individuals to request the exercise of the rights recognized in the GDPR. It is the obligation of IBERIA to establish the necessary internal mechanisms to ensure that requests for rights are properly addressed or, at the very least, forwarded to the appropriate team to provide a proper response.

In this sense, it is not unreasonable (nor impractical nor a disproportionate effort) for the data controller (IBERIA, in this case) to implement the necessary internal mechanisms so that, at least regarding its customer service, where requests of all kinds are expected to be received (including requests for the exercise of rights recognized by the GDPR), such requests are resolved or promptly redirected to the designated team for that purpose, in order to ensure they are answered within the timeframe established by the GDPR.

In any case, this Agency considers that communicating with IBERIA's customer service cannot be understood as a “random or incorrect address, not directly provided by the data controller,” nor as “any communication channel that is clearly not intended to receive requests related to the rights of the data subject,” as outlined in the Guidelines 01/2022 of the European Data Protection Board, without prejudice to the fact that IBERIA may have provided a different preferred means of communication. Therefore, in this case, this Agency considers that, by communicating with customer service, the complainant could reasonably expect their request to be addressed.

In any case, on June 22, 2021, the complainant sent an email to OficinaDPO@iberia.es, an address that appeared in the privacy policy in effect at that time for such inquiries, indicating that they still did not know why they had to share their information with Iberia, how their data was used, and what the outcome of that communication was; however, they also did not receive a response to this email from IBERIA.

Therefore, for all the reasons stated, this Agency dismisses the present allegation.

IBERIA claims that the AEPD must evaluate all actions taken by the company in order to classify the alleged infringement committed, as well as when quantifying the sanction. This is because, as this Agency has stated on numerous occasions, the response provided, even if late, does not prevent the right from being duly addressed. Furthermore, the “exceptional nature of the sanctioning procedure must be taken into account, from which it follows that - whenever possible, preference should be given to alternative mechanisms if they are supported by current regulations.”

In this regard, this Agency wishes to point out that, without its intervention once the complaint was admitted for processing, the complainant's right would not have been addressed. Therefore, this allegation is dismissed.

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IBERIA considers that the AEPD has not adequately applied the principles of the administrative sanctioning procedure, as we are faced with a sanction that is undeniably disproportionate, in its opinion, reaching such conclusions based on the following facts:

1. It cannot be said that a large number of people have been affected by the late response, nor can it

be said that the claimant has suffered serious damages and/or losses, given that this right has been satisfied, nor are such damages and/or losses substantiated. In this regard, this Agency wishes to point out that the GDPR does not require the existence of serious damages and/or losses on the part of the claimant to establish the existence of an infringement, as is the case here. It is emphasized that the right was satisfied only after this Agency intervened, once the complaint was admitted for processing. Finally, the nature of the infringement, the number of affected parties, and the existence or absence of damages and losses are all issues that have been taken into account and have been duly justified when determining the sanction to be imposed on IBERIA. Therefore, for all the reasons stated, this allegation is dismissed.

2. Furthermore, in IBERIA's view, in light of the data presented regarding the number of complaints filed and rights exercised, the fact that the Company's business activity requires continuous processing of personal data should be valued as a positive aspect rather than a negative one, since the number of complaints filed with this supervisory authority compared to the more than 14,696 requests that can be received through the DPO mailbox is minimal. In this regard, this Agency wishes to point out that a large company that processes personal data of its customers on a large scale, systematically and continuously, must exercise extreme care in complying with its obligations regarding data protection, as established by jurisprudence. In this sense, the Judgment of the National Court of October 17, 2007 (rec. 63/2006), starting from the premise that these are entities whose activity involves continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

That is to say, precisely because personal data is continuously processed, greater care and diligence is required, in this case, when managing the exercise of rights by the data subjects. Therefore, this allegation is dismissed.

3. IBERIA claims that it is at least striking that the AEPD has considered as an aggravating factor "the financial benefits or losses avoided, directly or indirectly through the infringement," when such circumstance is neither...

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neither has it been substantiated by the Agency, and the motivation on which this body bases its conclusion remains unknown.

Well, as the Supreme Court recalled in its Judgment of September 20, 2012:

"the requirement for motivation of administrative acts constitutes a constant in our legal system, as proclaimed by Article 54 of the LRJPA (previously, Article 43 of the Administrative Procedure Act of July 17, 1958), with the aim of allowing the interested party to know the reasons leading to the Administration's resolution, in order, if applicable, to be able to refute them in the procedural manner regulated for that purpose.

This motivation, in turn, is a consequence of the principles of legal certainty and the prohibition of arbitrariness enunciated by section 3 of Article 9 of the Spanish Constitution (CE) and which can also, from another perspective, be considered a constitutional requirement imposed not only by Article 24.2 CE but also by Article 103 (principle of legality in administrative action). For its part, the Charter of Fundamental Rights of the European Union, proclaimed by the European Council in Nice on December 8-10, 2000, includes within its Article 41, dedicated to the "Right to Good Administration," among other particulars, "the obligation incumbent upon the Administration to motivate its decisions." Such a provision is now integrated into the Treaty on European Union (Lisbon Treaty), of December 13, 2007, ratified by Instrument of December 26, 2008, which in its Article 6 states that "The Union recognizes the rights, freedoms, and principles enunciated in the Charter of Fundamental Rights of the

European Union of December 7, 2000, as adapted on December 12, 2007, in Strasbourg, which shall have the same legal value as the Treaties."

In this regard, this Agency wishes to recall that section k) of Article 83.2 of the GDPR does not refer solely to the financial benefits obtained or the losses avoided through the infringement but refers to "Any other aggravating or mitigating factor applicable to the circumstances of the case...". That is to say, financial benefits or avoided losses are just an example, but do not limit the content of that section solely to those factors. On the contrary. In this sense, this Agency has considered that the size of IBERIA, the number of employees, and the volume of sales should be taken into account when determining the sanction to be imposed. Therefore, this allegation is dismissed.

4. In addition to all the above, IBERIA considers that the Agency, with the intention of aggravating the imposed amount, has assessed different sanctioning procedures in which said company incurred in infringement. In this regard, IBERIA clarifies the following issues:

a. Resolution of PS/00060/2020 published on July 20, 2020, in which it was determined that an infringement of "Article 37.1.f of the LOPD, classified as serious in Article 44.3.i of the LOPD" was committed. To this end, pursuant to the provisions of Article 78 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, "LOPDGDD"), said C/ Jorge Juan, 6

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The sanction is prescribed as three years have elapsed since it was imposed.

In this regard, this Agency wishes to point out that in PS/00060/2020, the commission of an infringement of Article 58.2 of the GDPR was determined, contrary to what IBERIA claims, which is classified under Article 83.5 e) of the GDPR.

Regarding the prescription of the sanctions referred to by IBERIA, Article 78 of the LOPDGDD refers to the possibility that such sanctions may be executed and has no relation to the possibility contemplated in paragraph e) of Article 83.2 of the GDPR: "e) any previous infringement committed by the controller or the processor" when assessing the possible sanction to be imposed for an infringement.

Therefore, this allegation is dismissed.

b. Resolution of PS/00402/2019 published on February 3, 2020, where an infringement of Article 6.1 of the GDPR - Lawfulness of Processing - was attributed, classified under Article 83.5 of the GDPR, which is considered prescribed as three years have elapsed since it was imposed.

In this regard, this Agency reiterates what was stated in the previous allegation, and therefore this allegation is dismissed.

c. Resolution of PS/00127/2020. While it is true that this last resolution dates from April 2021, it should be noted that it analyzed the infringement of the provisions of Article 13 of the GDPR - Information to be provided when personal data are obtained from the data subject - which is why it should not be taken into account in the present procedure given the lack of similarity and coherence with what has been analyzed in the present case.

As stated by the EDPB, "Although all previous infringements may provide an indication of the general attitude of the controller or the processor regarding compliance with the GDPR, infringements of the same subject matter should be given greater importance, as they are closer to the infringement currently being investigated, especially when the controller or the processor previously committed the same infringement (repeated infringements). Therefore, the same infringements of the subject matter should be considered more relevant than previous infringements related to a different subject."

In this regard, this Agency wishes to point out that Article 83.2 of the GDPR does not indicate that the infringements must be of identical nature or subject, but rather makes a broad reference. In fact, the EDPB does not indicate this either, as it simply states that greater importance should be given to those infringements of the same subject matter, but does not preclude consideration of the fact that there have been other previous infringements, even if they are not of the same nature. Therefore, this allegation is dismissed.

IBERIA claims that, in light of the above, the AEPD has omitted to consider any mitigating factors that could lessen the im-

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established by making a late communication that, in no case, has been the result of fraudulent conduct, which is why IBERIA concludes that the principle of proportionality has not been observed rigorously. Thus, in the words of the Supreme Court, in its ruling of June 6, 2007:

“The principle of proportionality, as stated in the STS of June 2, 2003, aims to adjust the sanction by establishing its specific gradation within the possible margins, according to the severity of the act constituting the infringement, both in its aspect of unlawfulness and culpability, weighing in its entirety the objective and subjective circumstances that integrate the factual basis subject to sanction and, in particular, as results from Article 131.3 of Law 30/92, the intentionality or repetition, the nature of the damages caused, and recidivism.”

IBERIA argues that, while it is true that zero risk is non-existent, the volume of treatments that an entity like IBERIA can carry out must be adequately assessed when imposing a sanction as a consequence of a mistake in managing a rights exercise, especially considering the circumstances that were overwhelming the global population at that time.

In this regard, this Agency reiterates that the factors to be considered when grading the sanction that could be imposed on IBERIA have been duly motivated, including the number of affected individuals, the nature of the infringement, among others, and therefore this allegation is dismissed.

Finally, IBERIA emphasizes the reference made in Legal Basis VI of the Agreement regarding the imposition of measures to adjust IBERIA's actions to the aforementioned regulations and that nothing is said or motivated in this regard. Therefore, it wishes to inform this supervisory authority that the measures adopted by the company are as follows:

1) Reiteration of the importance of addressing the rights exercises carried out by data subjects, in accordance with the requirements of the current data protection regulations and the processes established within the Company.

2) Reduce the time for updating training, which should be conducted annually and/or semi-annually.

In this regard, this Agency wishes to point out that this allegation is deemed sufficient and no additional measures will be proposed for IBERIA.

SECOND. - ON THE CLASSIFICATION OF THE INFRINGEMENT IN RELATION TO THE EVENTS THAT OCCURRED.

IBERIA argues that, under the observance of the criteria described by the EDPB in its Guidelines 01/2022, the alleged infringement should be framed within the legal framework established by Article 74.c) of the LOPDGDD.

In this regard, this Agency wishes to point out that it is surprising that IBERIA invokes Guidelines 01/2022 on the right of access of data subjects, in which

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In no way is there any reference to what is established by Article 74 of the LOPDGDD.

The infringements set forth in Articles 72, 73, and 74 of the LOPDGDD are only for the purposes of prescription, as stated at the beginning of each of these provisions. This necessity arose in our State given that there is no reference in the GDPR to the prescription related to infringements, as this legal institute is not typical of all EU Member States.

Thus, it is clear regarding prescription in the preamble of the LOPDGDD when it states that “The categorization of infringements is introduced solely for the purpose of determining the prescription

periods, with the description of typical behaviors having the sole object of exemplifying some of the sanctionable acts that must be understood as included within the general types established in the European regulation. The organic law regulates the cases of interruption of prescription based on the constitutional requirement of knowledge of the facts attributed to the person.”

It is the application and interpretation of the GDPR, and not the LOPDGDD, that determines the severity of an infringement based on a series of conditions provided therein.

As can be seen, there is no classification in the GDPR of very serious, serious, or minor infringements typical of the Spanish legal system, nor can it be deduced from its wording that the violation of the provisions of Article 83.4 of the GDPR corresponds to minor infringements and the provisions of Article 83.5 or Article 83.6 of the GDPR correspond to serious infringements.

Thus, Recital 148 speaks of serious infringements in contrast to minor ones when it states that “In the case of a minor infringement, or if the fine that would likely be imposed constitutes a disproportionate burden for a natural person, instead of a sanction by fine, a warning may be imposed. However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant prior infringement, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the responsible party or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances.”

For all these reasons, the severity of an infringement is determined for the purposes of the GDPR and with the elements provided by it.

In this regard, it is pertinent to bring up the Opinion of the Council of State dated October 26, 2017, regarding the Draft Organic Law on the Protection of Personal Data, which explains it in great detail: “On the other hand, the European Regulation does not distinguish, when setting the amount of sanctions, between very serious, serious, and minor infringements, as stated in the preamble of the Draft. In reality, the European norm limits itself to distinguishing, based on the maximum quantitative limit of the fine to be imposed, between infringements that can be sanctioned 'with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year' (paragraph 4 of Article 83), and other infringements that can be sanctioned 'with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year'.”

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“total annual global business of the previous financial year” (sections 5 and 6 of Article 83). From this distinction, it can be inferred that, for European Union law, the violations specified in sections 5 and 6 of Article 83 can be of the same and greater severity than those contemplated in section 4 of the same Article 83 of the European Regulation. The European norm thus limits itself to establishing two categories of violations based on their severity.

The Draft Bill, on the other hand, contemplates three categories of violations: Article 73 of the Draft Bill considers “very serious” violations to be the “substantial breach” of the provisions mentioned in sections 5 and 6 of Article 83 of the European Regulation; Article 74 of the Draft Bill considers “serious” violations to be the “substantial breach” of the provisions mentioned in section 4 of Article 83 of the European Regulation; and Article 75 considers “minor” violations to be the remaining “merely formal violations” of the provisions mentioned in sections 4 and 5 of Article 83 of the European Regulation.

The tripartition made by the Draft Bill results from the distinction between “substantial breaches” and “merely formal violations” of the provisions mentioned in sections 4, 5, and 6 of Article 83 of the European Regulation: if they are substantial breaches, they will be considered “very serious” violations when the breached provisions are those mentioned in sections 5 and 6, or “serious” when the breached provisions are those mentioned in section 4, while if they are merely formal violations of such

provisions, they will be considered in any case as "minor."

This distinction between "substantial breaches" and "merely formal violations" and the consequent inclusion of a third category of "minor violations," distinct from serious and very serious violations, has been made - as is evident from the file and the text of the Draft Bill itself - solely for the purpose of establishing the limitation periods for violations and not for determining the amount of administrative fines, which requires, for better understanding, some additional clarifications.

The limitation periods for violations are not provided for in the European Regulation and, therefore, there is a tacit but peaceful understanding that the Member States have the competence to establish such periods. The determination of such periods must be based, as is well known, on the severity of the violation. Well, the violations provided for in section 4 of Article 83, on one hand, and in sections 5 and 6 of Article 83 of the European Regulation, on the other, have a different maximum limit - €10,000,000 or 2% of the business volume in the first case, €20,000,000 or 4% of the business volume in the second - but the same minimum limit, which in both cases is €1. The existence of such wide quantitative margins indicates that the violations of Article 83, whether those of section 4 or those of sections 5 and 6, can be of very different magnitude and that, for this reason, those violations that are close to the upper quantitative limit due to their severity cannot have the same limitation period as those that, due to their minor nature, are closer to the lower quantitative limit. Under such circumstances, the establishment of limitation periods would not be satisfactorily resolved by applying the same to the violations of the provisions mentioned in sections 5 and 6 of Article 83.

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83 a period longer than that for the violations of the provisions mentioned in section 4 of article 83, given that the violations contemplated by both sets of provisions, in the case of being minor, would require a shorter limitation period.

From this perspective and solely for the purpose of establishing its limitation period, the Draft Bill has distinguished between "merely formal violations" and "substantial violations" of such provisions, considering the former as "minor violations" with a limitation period of one year and the latter as "serious" and "very serious violations" with limitation periods of two and three years respectively. In the opinion of the Council of State, this classification of violations, insofar as it is made solely for the purpose of determining limitation periods for violations not provided for in the European Regulation, cannot be understood as contrary to the provisions of European law.

This classification, however, does not have significance regarding the amount of the fines. The determination of the amount of fines to be imposed for the violation of the provisions mentioned in sections 4, 5, and 6 of article 83 of the European Regulation falls, according to European law, to the supervisory authorities, in accordance with the criteria for graduation established in section 2 of this same provision, among which is the "nature" or "seriousness" of the violation. Within the quantitative limits established by the European Regulation, the supervisory authorities, taking into account the greater or lesser severity of the violation, must set the amount of the fines. Certainly, the margins available to the supervisory authorities are very broad—from 1 euro to 10,000,000 euros for violations of the provisions mentioned in section 4 of article 83 and from 1 euro to 20,000,000 euros for violations of the provisions mentioned in sections 5 and 6—which grants such authorities a high degree of discretion, far superior to what is usually common in countries of our legal tradition. It is, in any case, the model desired by the European Regulation, which is why the distinction between minor, serious, and very serious violations contemplated in the Draft Bill cannot have consequences in determining the maximum amount for minor violations, and the determination of their amount must, in any case, be made by the supervisory authorities, according to the circumstances of the specific case, within the limits set in that regulation.

Therefore, the classification of violations for the purposes of the limitation period of the LOPDGDD has no bearing on the determination of the seriousness of the violation for the purposes of the GDPR nor regarding the imposition of the corresponding fines, if applicable. Thus, this allegation is dismissed.

IBERIA argues that, under former article 74, this violation, being considered minor, would be time-barred since, taking into account the date on which the complainant sent their first email to IBERIA, that is, May 31, 2021, more than a year has passed from the date of commission of this violation to the date of notification of this Agreement, that is, September 2023.

In this regard, this Agency wishes to bring to attention the Judgment of the National Court 3432/2009, dated June 18, 2009, in which it is stated that:

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“(…) the very fact of not providing the requested information constitutes the infringing act defined in article 44.3.e) of the LOPD. This is because the lack of response to the access requests from the complainant and the transfer of data to another company constitutes an obstruction of the right of access recognized to all affected parties by article 15 of the LOPD, which article 44.3 e) classifies as a serious infringement.”

That is to say, the failure to provide access to the data held by IBERIA to the claiming party constitutes an obstruction of the right of access, as defined in section k) of article 72.1 of the LOPDGDD. For this reason, the present allegation is dismissed.

Finally, IBERIA indicates that, in the event that the prescription of the infringement is not recognized by this supervisory authority, it would be appropriate to observe a warning as a sanction, as has been done in other proceedings before this Agency, as this is deemed more appropriate in accordance with the provisions of article 58.2 of the RGPD.

In this regard, this Agency wishes to reiterate what recital 148 of the RGPD states about the possibility of imposing a warning: “In the case of a minor infringement, or if the fine that would likely be imposed would constitute a disproportionate burden for an individual, a warning may be imposed instead of a fine. Special attention must, however, be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringements, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances.”

In the present case, this Agency has evaluated and motivated all the aggravating or mitigating circumstances referred to in the aforementioned recital 148 of the RGPD (which are none other than those in article 83.2 of the RGPD) and has understood that the infringement in question is not minor for the purposes of the RGPD, and therefore has deemed it lawful to impose a fine instead of issuing a warning. For this reason, the present allegation is dismissed.

IV

Right of access of the data subject

Article 15 “Right of access of the data subject” of the RGPD establishes:

“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

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- d) if possible, the intended retention period for personal data or, if not possible, the criteria used to determine this period;

- e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;
 - f) the right to lodge a complaint with a supervisory authority;
 - g) when personal data have not been obtained from the data subject, any available information about their source;
 - h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.
3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.
4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

In this case, the complainant requested access to their personal data related to the communication of their data between Iberia and the Madrid Airport Police, at least on June 3 and 22, 2021, via email to the customer service of IBERIA and to the DPO Office of IBERIA, without receiving a proper response until October 21, 2022, as a result of the intervention of this Agency.

Therefore, in accordance with the evidence available at this stage of the proposed sanctioning procedure, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute an infringement attributable to IBERIA for violation of Article 15 of the GDPR.

V

Classification and qualification of the infringement of Article 15 of the GDPR

If confirmed, the aforementioned infringement of Article 15 of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher."

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(...)

b) the rights of the interested parties pursuant to Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a statute of limitations of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

VI

Sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this time of the proposed sanctioning procedure, and without prejudice to what may result from the instruction, it is considered appropriate to grade the sanction to be

imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected interested parties and the level of damage and harm suffered (paragraph a): for failing to duly attend to the exercise of the access right of the complaining party, from at least June 3, 2021, to October 21, 2022.
- Negligence in the infringement: The access right was not duly attended to despite having had more than one opportunity to do so. In its email of June 2, 2021, IBERIA acknowledges that there had already been a prior complaint from the complaining party, but no indication is given regarding the communications between IBERIA and the Madrid Airport Police. On June 7 and June 18, 2021, the complaining party received two emails acknowledging receipt of the complaint submitted by the complaining party. Although on June 20, 2021, IBERIA responded to the complaining party, no proper response was provided regarding the requested information. On June 22, 2021, the complaining party insisted on their request and explained that they had already requested that data four times through IBERIA's customer complaint channel and that, although they received four responses, all of them lacked specific details, so they continued to be unaware of why they had to share their data with IBERIA, how that data was used, and what the outcome of that communication was. On June 24, 2021, IBERIA responded to the complaining party that "we must repeat the resolution we offered in our previous communication," that is, it continued to fail to provide a proper response to the complaining party's request. Only after IBERIA became aware of the complaint through this Agency was a proper response given to the aforementioned request. Despite having had multiple opportunities to do so, IBERIA has been extremely negligent in providing a proper response to the personal data access request of the complaining party, as it was necessary for this Agency to intervene, despite the interested party having contacted the company through various means and on different dates.
- Any previous infringement committed by the data controller or the processor (paragraph e): this Agency has confirmed an infringement of the GDPR by IBERIA in sanctioning procedures PS/00402/2019 (for failing to attend to a request for the exercise of the right to erasure), PS/00060/2020 (for failing to attend to a request for the exercise of the right to access), and PS/00127/2020 (for lack of transparency of information regarding the processing of personal data).
- Any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement (paragraph k): IBERIA (...) has ***AMOUNT.1 employees and sales of ***AMOUNT.2.

It is also considered appropriate to grade the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

- The link of the infringer's activity with the processing of personal data (paragraph b): The development of the business activity carried out by the entity requires continuous processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 15 of the GDPR, allows for the proposal of a sanction of €50,000 (fifty thousand euros).

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued that the Director of the Spanish Agency for Data Protection sanctions IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA, with NIF A85850394, for an infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €50,000.00 (fifty thousand euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, carry out the voluntary payment of the proposed sanction, which

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will result in a 20% reduction of the amount thereof. With the application of this reduction, the penalty would be set at 40,000.00 euros, and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the penalty.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of Article 85.2 cited, you must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the penalty amount.

Furthermore, you must send the proof of payment to the General Sub-Directorate of Inspection to proceed with closing the file.

By virtue of this, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may state whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.

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R.R.R.

INSPECTOR/INSTRUCTOR

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SECOND: On February 8, 2024, the respondent has proceeded to pay the penalty in the amount of 40,000 euros making use of the reduction provided for in the resolution proposal transcribed above.
THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the penalty, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants the Director of the Spanish Agency for the Protection of Data the authority to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202202064, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the

fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for the Protection of Data

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